

103	Anaheim Chamber of Commerce vs. Anaheim/Orange County Visitor & Convention Bureau 2025-01499697	Motion to Appear Pro Hac Vice Plaintiff Anaheim Chamber of Commerce’s application for pro hac vice admission of attorney Jonathan Ibsen is GRANTED. On or before the anniversary of the date of this order, if this attorney remains counsel for the moving party, the moving party must pay an annual renewal fee of five hundred dollars (\$500) for each year that the attorney maintains pro hac vice status in this case. (Gov. Code, § 70617, subd. (e)(2).) Moving party shall provide notice.
104	Andrawes Husary vs. Shahidi 2025-01487294	Motion to Appear Pro Hac Vice Consistent with the Court’s previous 5/5/2026 order staying all case deadlines and future hearings for a period of 45 days (ROA #75), Specially Appearing Defendants John Shahidi; Nelk, Inc.; Metacard, LLC; Nelk USA, Inc.; and Kyle Forgeard’s application for pro hac vice admission of attorney Brian M. French is CONTINUED to 07/02/2026 at 02:00 PM in Department CX102. Clerk to give notice.
105	Bojorquez vs. Hood Pacific Contractors, Inc. 2025-01492976	1. Petition to Compel Arbitration 2. Case Management Conference Defendant Hood Pacific Contractors, Inc.’s motion to compel arbitration is GRANTED. (Code Civ. Proc. [CCP], § 1281.2; see also ROA #25 [Hood Decl.], passim; ROA #31 [Rocha Decl.], Exhs. A-C.) The Court notes that Plaintiff Jose Bojorquez filed a notice of non-opposition to the motion. (ROA #56.) Plaintiff “does not oppose entry of an order compelling arbitration of any claims the Court determines are subject to arbitration,” but Plaintiff “requests that the Court either (1) decline to dismiss the operative complaint and stay the action at this time, or (2) defer any determination regarding dismissal and/or a stay until after the Court has ruled on Plaintiff’s pending Motion for Leave to File a Second Amended Complaint currently set for hearing on July 23, 2026.” (<i>Id.</i>) The Court finds that Plaintiff’s notice of non-opposition concedes that the arbitration agreement exists, as Plaintiff presents no arguments or evidence

otherwise. Accordingly, the Court **ORDERS** that Plaintiff must be compelled to arbitrate his individual claims against Defendant.

The parties' arbitration agreement also includes a class waiver: "THE PARTIES AGREE THAT EACH MAY BRING CLAIMS AGAINST THE OTHER ONLY IN THEIR INDIVIDUAL CAPACITY, AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS AND/OR COLLECTIVE PROCEEDING." (Rocha Decl., Exh. A [Arbitration Agreement], p. 93, ¶ 8, **bolding omitted.**)

Plaintiff does not contend that this class waiver is unenforceable. Nor does Plaintiff cite any authority requiring the Court *not* to dismiss Plaintiff's class claims when there is an enforceable class waiver. Accordingly, Plaintiff's class claims against Defendant are **DISMISSED**.

Further, CCP section 1281.4 provides, in relevant part:

If a court . . . has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.

Defendant's notice of motion and motion seeks a stay of "the remaining PAGA claim pending completion of the arbitration." (ROA #33 [Not. of Mot. & Mot.], p. 2; see also ROA #23 [Mot. P&A], p. 14 ["Because Plaintiff's individual claims must be ordered to arbitration, the Court should dismiss the class claims which have been waived pursuant to the parties' valid and enforceable Arbitration Agreement, leaving only the PAGA claims remaining which the Court should stay until the arbitration proceedings are completed."]; ROA #58 [Reply], p. 1 [Defendant's motion seeks a "stay [of] the remaining PAGA claim pending completion of arbitration"].)

Plaintiff cites no authority to support his contention that the Court should or may refuse to impose the requested stay pursuant to CCP section 1281.4 once the Court orders Plaintiff to arbitrate his individual claims against Defendant. Accordingly, Plaintiff's remaining PAGA claim against Defendant is **STAYED** until the arbitration is had pursuant to CCP section 1281.4.

An ADR review hearing is scheduled for December 3, 2026, at 9:30AM in Department CX102. The parties shall submit a joint status report 10 days in advance of the hearing.

The current CMC is vacated.

Defendant shall give notice.

**106 Bohinski vs.
Workway, Inc.

2025-01487765**

Motion to Compel Arbitration

Defendant Workway, Inc.’s Motion to Compel Arbitration of Plaintiff’s Individual Claims, Dismiss Class Action Claims, and for Stay or Dismissal of Proceedings filed on 2/19/2026 at ROA #84 is **GRANTED**.

On 6/5/2025, Plaintiff Velia Bohinski commenced this action against Defendants Workway, Inc. and Commercial Bank of California (“CBC” or “CBOC”) by filing a complaint, alleging 10 causes of action for various Labor Code violations and unfair competition. (ROA #2.) The complaint specifically includes a section on “Joint Liability Allegations” and alleges, inter alia, that at “all the times mentioned herein, each of the Defendants was the agent, principal, employee, employer, representative, joint venture or co-conspirator of each of the other defendants . . .” and that “there exists such a unity of interest and ownership between Defendants, and each of them, that their individuality and separateness have ceased to exist.” (*Id.* at ¶¶ 6, 9.) Accordingly, Plaintiff alleges that “Defendants, and each of them, are joint employers.” (*Id.* at ¶ 11.) Indeed, the complaint’s allegations of wrongdoing do not differentiate between Workway and CBC and generally alleges “Defendants” engaged in all alleged acts. (See *id.*, passim.)

On 8/28/2025, CBC filed a motion to compel arbitration of Plaintiff’s individual claims, dismiss the class claims, and stay the action pending completion of the individual arbitration. (ROA #38.) CBC’s motion was based on a February 12, 2025 arbitration agreement executed by CBC and Plaintiff. (ROA #36, Exh. A.) On 1/22/2026, the Court granted the motion, including staying Plaintiff’s case against CBC pending the completion of the arbitration. (ROA #71.)

In the meantime, on 9/12/2025, Workway filed a separate motion to compel arbitration of Plaintiff’s individual claims, dismiss or strike Plaintiff’s class action claims, and stay or dismiss or the present action until completion of arbitration (“First Motion”). (ROA #47.) Workway’s First Motion was based only on an arbitration agreement executed by Workway on 12/4/2023 and by Plaintiff on 12/6/2023. (ROA #45, Exh. A.) On 1/29/2026, the Court denied Workway’s First Motion because the agreement is procedurally and substantively unconscionable, and the unconscionable provisions are not severable. (ROA #74.)

On 2/19/2026, Workway filed the instant, second motion to compel arbitration—seeking the same relief but based on the arbitration agreement between CBC and Plaintiff, which Workway contends is applicable to Workway under the theory of equitable estoppel. (ROA #84.)

1. Code of Civil Procedure (CCP) Section 1008

Plaintiff contends that Workway’s instant motion is an improper renewed motion under Code of Civil Procedure (CCP) section 1008 because it seeks the same relief (i.e., compelling Plaintiff to arbitrate her claims against Workway) as Workway’s First Motion, which the Court heard and denied on 1/29/2026. The only difference is that the First Motion was based on Workway’s own arbitration agreement with Plaintiff, while the instant,